

BEFORE
THE FEDERAL MARITIME COMMISSION

DOCKET NO. 22-32

DOKA U.S.A LTD.

VS.

MSC MEDITERRANEAN SHIPPING COMPANY (USA)
INC.

ANSWER TO VERIFIED COMPLAINT

Respondent, MSC MEDITERRANEAN SHIPPING COMPANY (USA) INC. (“MSC USA” or “Respondent”) through its undersigned counsel, answers Complainant DOKA U.S.A LTD.’s (“DOKA” or “Complainant”) Verified Complaint (“Complaint”), upon information and belief, as follows:

INTRODUCTION

1. Denies the allegations contained in paragraph 1 of DOKA’s Complaint and defers all questions of law to the Commission for determination.

COMPLAINANT

2. Denies knowledge or information sufficient to form a belief as to the allegations contained in paragraph 2 of DOKA’s Complaint.

3. Denies knowledge or information sufficient to form a belief as to the allegations contained in paragraph 3 of DOKA’s Complaint.

RESPONDENT

4. Denies the allegations contained in paragraph 4 of DOKA's Complaint. MSC USA has a principal place of business located at 420 5th Ave, New York, NY 10018. MSC USA is the agent in the United States for MSC MEDITERRANEAN SHIPPING COMPANY SA ("MSC SA" or "Principal").

5. Denies the allegations contained in paragraph 5 of DOKA's Complaint.

JURISDICTION

6. Denies knowledge or information sufficient to form a belief as to the allegations contained in paragraph 6 of DOKA's Complaint.

7. Denies the allegations contained in paragraph 7 of DOKA's Complaint and defers all questions of law to the Commission for determination.

8. Denies the allegations contained in paragraph 8 of DOKA's Complaint.

9. Denies the allegations contained in paragraph 9 of DOKA's Complaint and defers all questions of law to the Commission for determination.

FACTUAL ALLEGATIONS

10. Denies the allegations contained in paragraph 10 of DOKA's Complaint. Non-Party MSC SA issued Seawaybill No. MEDUUT103923 on or about June 23, 2021.

11. Admits the allegations contained in paragraph 11 of DOKA's Complaint.

12. Admits the allegations contained in paragraph 12 of DOKA's Complaint. The containers were discharged at the port of Seattle on October 17, 2021.

13. Denies knowledge or information sufficient to form a belief as to the allegations contained in paragraph 13 of DOKA's Complaint.

14. Denies knowledge or information sufficient to form a belief as to the allegations contained in paragraph 14 of DOKA's Complaint.

15. Denies the allegations contained in paragraph 15 of DOKA's Complaint. The bill of lading and the manifest were created by non-party MSC SA based on the information provided by the shipper, the consignee and/or their principals, agents or brokers.
16. Denies knowledge or information sufficient to form a belief as to the allegations contained in paragraph 16 of DOKA's Complaint.
17. Denies the allegations contained in paragraph 17 of DOKA's Complaint.
18. Denies knowledge or information sufficient to form a belief as to the allegations contained in paragraph 18 of DOKA's Complaint.
19. Denies knowledge or information sufficient to form a belief as to the allegations contained in paragraph 19 of DOKA's Complaint.
20. Denies knowledge or information sufficient to form a belief as to the allegations contained in paragraph 20 of DOKA's Complaint.
21. Denies knowledge or information sufficient to form a belief as to the allegations contained in paragraph 21 of DOKA's Complaint.
22. Denies knowledge or information sufficient to form a belief as to the allegations contained in paragraph 22 of DOKA's Complaint.
23. Denies knowledge or information sufficient to form a belief as to the allegations contained in paragraph 23 of DOKA's Complaint.
24. Denies knowledge or information sufficient to form a belief as to the allegations contained in paragraph 24 of DOKA's Complaint.
25. Denies the allegations contained in paragraph 25 of DOKA's Complaint.
26. Denies the allegations contained in paragraph 26 of DOKA's Complaint.

27. Denies the allegations contained in paragraph 27 of DOKA's Complaint and defers all questions of law to the Commission for determination.

CAUSES OF ACTION

I. Violation of Section 41102 (c) of the Shipping Act

28. Respondent repeats and realleges each and every admission, denial and denial of knowledge or information contained in Paragraphs 1 through 27 inclusive of this Answer, with the same force and effect as if herein set forth at length.

29. Denies the allegations contained in paragraph 29 of DOKA's Complaint and defers all questions of law to the Commission for determination.

30. Denies the allegations contained in paragraph 30 of DOKA's Complaint and defers all questions of law to the Commission for determination.

II. Violation of Section 46 USC §41104(a)(15); 46 USC §§41104

31. Respondent repeats and realleges each and every admission, denial and denial of knowledge or information contained in Paragraphs 1 through 30 inclusive of this Answer, with the same force and effect as if herein set forth at length.

32. Denies the allegations contained in paragraph 32 of DOKA's Complaint and defers all questions of law to the Commission for determination.

DAMAGES

33. Denies the allegations contained in paragraph 33 of DOKA's Complaint and defers all questions of law to the Commission for determination.

AS AND FOR AFFIRMATIVE DEFENSES TO THE CLAIMS SET FORTH IN THE COMPLAINT, RESPONDENT MSC USA ALLEGES UPON INFORMATION AND BELIEF AS FOLLOWS

1. The Federal Maritime Commission lacks subject matter jurisdiction over the Complaint.

2. The Federal Maritime Commission lacks personal jurisdiction over Respondent MSC USA.
3. The Complaint fails to allege essential elements of a claim as provided under 46 CFR 502.62 (a)(3)(iii).
4. The Complaint fails to state a claim against MSC USA on which relief may be granted.
5. MSC USA is an agent for a disclosed principal and Claimant is and was aware of that agent/principal relation.
6. MSC USA is not an ocean common carrier, marine terminal operator, or ocean transportation intermediary subject to 46 U.S.C. § 41102.
7. Any inability to deliver the containers to the Complainant was due in whole or in part to the acts and/or omissions of the Complainant, its agents, the cargo interest(s) and/or in any event to circumstances or third parties outside the control of MSC.
8. The allegations in the Complaint lack a meritorious factual basis.
9. Respondent's conduct was reasonable considering the totality of the circumstances.
10. Any alleged damages sustained by the Complainant were proximately, directly, and solely caused by the acts of third persons over whom the Respondent had and has no direction or control.
11. In the alternative, and without waiver of any other defenses or affirmative defenses, Complainant has failed to mitigate its damages.

RESERVATION OF RIGHTS TO AMEND AND TO RAISE A COUNTERCLAIM

Respondent reserves its right to amend this Answer and to plead any additional affirmative defenses.

Respondent, on behalf of its principal, non-party MSC SA, reserves all rights to bring a counterclaim against DOKA for any of the outstanding charges owed by DOKA to MSC S.A. before the Federal Maritime Commission or any Court of competent jurisdiction.

WHEREFORE, Respondent prays that after due oral hearing to be conducted in Washington, D.C., or by video conference, an order be made dismissing the Complaint.

Respectfully submitted,

/s/Wook Chung

/s/Kaspar Kielland _____

Wook Chung

Kaspar Kielland

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(212) 201-1931 / (212) 867-9500

Dated: December 19, 2022

VERIFICATION OF RESPONDENT
MSC MEDITERRANEAN SHIPPING COMPANY (USA) INC.

Nicholas Hargreaves hereby verifies as follows:

1. I am Internal Counsel of MSC MEDITERRANEAN SHIPPING COMPANY (USA) INC. ("MSC USA")
2. I am authorized to make this verification on behalf of MSC USA.
3. I hereby verify that the facts contained in the foregoing answer and affirmative defenses are true and correct to the best of my knowledge, information, and belief.
4. I verify under penalty of perjury that the foregoing is true and correct.

Dated: December 19, 2022



Name: Nicholas Hargreaves

Title: Internal Counsel for MSC USA Inc

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 19th day of December 2022, the foregoing

Verified Answer was served via electronic mail on:

Federal Maritime Commission
Office of the Secretary
secretary@fmc.gov

Federal Maritime Commission
Presiding Administrative Law Judge Linda S. Harris Crovella
judges@fmc.gov

Complainant
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/s/Kaspar Kielland